

Smt B Banu vs Sri Harsha G P on 19 July, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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NC: 2023:KHC:25118-DB
MFA No.2706 of 2018

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 19TH DAY OF JULY, 2023
PRESENT
THE HON'BLE MR. JUSTICE ALOK ARADHE
AND
THE HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE
MISCELLANEOUS FIRST APPEAL NO.2706 OF 2018 (FC)
BETWEEN:

Digitally
signed by
RUPA V
Location:
High Court
of Karnataka

1. SMT. B. BANU
D/O BASAVALINGAIAH
AGED ABOUT 36 YEARS
R/AT NO.20, 23RD MAIN
11TH F CROSS, J C NAGAR
KURUBARAHALLI, BANGALORE-560 086.

...APPELLANT

(BY SRI. SHIVANANDA S, ADV., FOR
SRI. MANU SHANKAR S.S. ADV.,)

AND:

1. SRI. HARSHA G.P.
S/O DR. G.N. PRABHAKAR
AGED ABOUT 38 YEARS
R/AT NO.37/17, 27TH CROSS
12TH MAIN, 4TH BLOCK EAST
JAYANAGAR, BANGALORE-560 011.

...RESPONDENT

(BY SRI. B. RAVISHANKAR, ADV.,)

THIS MFA IS FILED UNDER SECTION 19(1) OF FAMILY COURT ACT, 1984, AGAINST THE JUDGMENT AND DECREE DATED 03.01.2018 PASSED IN M.C.NO.2270 OF 2013 ON THE FILE OF THE V ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT, BENGALURU, ALLOWING THE PETITION FILED UNDER SECTION 13(1)(ia) AND (ib) OF THE HINDU MARRIAGE ACT, 1955.

THIS APPEAL COMING ON FOR HEARING, THIS DAY,
ALOK ARADHE J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal under Section 19(1) of the Family Courts Act, 1984 has been filed by the wife against the judgment dated 03.01.2018 passed in M.C.No.2270/2013 by which petition filed by the respondent / husband under Section 13 of the Hindu Marriage Act, 1955 (hereinafter referred to as 'the Act' for short) seeking dissolution of marriage on the ground of cruelty and desertion has been allowed.

2. Learned counsel for the appellant submitted that the appellant / wife had filed an application under Section 25 of the Act as well as an application under Section 151 of Code of Civil Procedure in the proceeding instituted by the respondent / husband under Section 13 of the Act.

NC: 2023:KHC:25118-DB However, the family court has not decided the aforesaid applications preferred by the appellant under Section 25 of the Act for interim maintenance as well as the application under Section 151 of Code of Civil Procedure seeking to return the belongings of the appellant / wife while pronouncing the judgment dated 03.01.2018. It is submitted that the appellant is not aggrieved by the decree of dissolution of marriage and the same be affirmed. However, the family court be directed to decide the application under Section 25 of the Act and Section 151 of Code of Civil Procedure filed by the appellant.

3. Learned counsel for the respondent has submitted that he has no objection to the aforesaid prayer.

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4. In view of the aforesaid submission and taking into account the fact that the Interlocutory Applications filed by the appellant / wife were not decided by the family court while pronouncing the judgment on 03.01.2018, it is directed that the family court shall decide the applications filed by the appellant under Section 25 of the Hindu Marriage Act, 1955 and Section 151 of Code of Civil Procedure after hearing the parties expeditiously. The judgment and decree dated 03.01.2018 insofar as it directs dissolution of marriage is affirmed.

5. Learned counsel for the parties undertake to appear before the family court along with a copy of this order on 21.08.2023.

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Sd/-

JUDGE Sd/-

JUDGE SS